**IN THE NATIONAL COMPANY LAW TRIBUNAL**
**NEW DELHI BENCH**
**COURT-IV**

**COMPANY PETITION (CAA) NO. 48/ND/2025**
**CONNECTED WITH**
**COMPANY APPLICATION (CAA) NO. 26/ND/2025**

**Section 230-232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016**

**IN THE MATTER OF:**
**KANAV REALTECH PRIVATE LIMITED**
...TRANSFEROR COMPANY NO. 1/PETITIONER COMPANY NO. 1
**AND**
**SHAKTIMAN INRASTRUCTURES PRIVATE LIMITED**
...TRANSFEROR COMPANY NO. 2/PETITIONER COMPANY NO. 2
**AND**
**ASTEROID SHELTERS HOMES PRIVATE LIMITED**
...TRANSFEREE COMPANY/PETITIONER COMPANY NO. 3

**...PETITIONERS**

**AND**

**THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS**

**Order Delivered on: 01.06.2026**

**CORAM:**
**SHRI MANNI SANKARIAH SHANMUGA SUNDARAM**
**HON'BLE MEMBER (JUDICIAL)**

**SHRI ATUL CHATURVEDI**
**HON'BLE MEMBER (TECHNICAL)**

**PRESENT:**

For the Petitioner : Mr. Gurcharan Singh, Mr. Abdul Zakaria, Advocates
For the IT Deptt. : Mr. Gaurav Gupta, SSC, Mr. Shivendra Singh, JSC, Mr. Yojit Pareek, JSC, Ms.Ankita, Adv
For the OL : Mr. Kartikeya Asthana, Mr. Bhaskar Anand, Advocates
For the RD : Dr. Kishorkumar Devarwade, Asst. Director

## ORDER

**PER: MANNI SANKARIAH SHANMUGA SUNDARAM, MEMBER (JUDICIAL)**

1. The captioned Petition is a second motion Petition jointly filed by the Petitioner companies viz., Kanav Realtech Private Limited (hereinafter referred to as Transferor Company No. 1/Petitioner Company No. 1) and Shaktiman Inrastructures Private Limited (hereinafter referred to as Transferor Company No. 2/Petitioner Company No. 2) and Asteroid Shelters Homes Private Limited (hereinafter referred to as Transferee Company/Petitioner Company No. 3) and their respective shareholders and creditors under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "Scheme").
2. As has been stated in the Petition, the Transferor Company No. 1/Petitioner Company No. 1 i.e., Kanav Realtech Private Limited was incorporated on 26th August, 2015 under the provisions of the Companies Act, 2013 bearing CIN: U45400DL2015PTC284612 having its registered office at Unit No.-105, First Floor, LSC Vardhman's Sidhant Shopping Plaza, Savita Vihar, Delhi, 110092, India. The Authorized Share Capital of the Transferor Company No. 1/Petitioner Company No. 1 is Rs. 10,00,000/- divided into 1,00,000 Equity shares

of Rs. 10/- each. The present Issued, Subscribed and Paid-up Share Capital is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs. 10/- each.

3. The Transferor Company No. 2/Petitioner Company No. 2 i.e., Shaktiman Infrastructures Private Limited was incorporated on 1st April, 2011, under the provisions of the Companies Act, 1956 bearing CIN: U45400DL2011PTC216895 having its registered office at Unit No. 105, First Floor, LSC Vardhman's Sidhant Shopping Plaza, Savita Vihar, Delhi-110092, India. The Authorized Share Capital of the Transferor Company No. 2/Petitioner Company No. 2 Rs. 2,00,000/- divided into 20,000 Equity shares of Rs. 10/- each. The present Issued, Subscribed and Paid-up Share Capital is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs. 10/- each.
4. The Transferee Company/Petitioner Company No. 3 i.e., Asteroid Shelters Homes Private Limited was incorporated on 19th November 2012, under the provisions of the Companies Act, 1956 bearing CIN: U70200DL2012PTC245035 having its registered office at Unit No. 105, First Floor, Vardhman's Sidhant- Shopping Plaza, LSC, Savita Vihar, Delhi, India-110092. The Authorized Share Capital of the Transferee Company/Petitioner Company No. 3 is Rs. 56,50,00,000/- divided into 4,45,00,000 Equity Shares of Rs. 10/- each and 1,20,00,000 Non-Cumulative Non-Participating and Compulsorily Convertible Preference

Shares of Rs. 10/-each. The present Issued, Subscribed and Paid-up Share Capital is Rs. 47,26,07,270/- divided into 4,37,60,727 Equity Shares of Rs. 10/- each and 35,05,000 Non- Cumulative Non-Participating and Compulsorily Convertible Preference Shares of Rs. 10/- each fully paid up.

5. The Petitioner Companies submit that the proposed scheme of Amalgamation of the Transferor Companies with the Transferee Company has the following objectives:

    a) The proposed Scheme of Amalgamation will result in enhanced leveraging capability of the combined entity to undertake future expansion strategies and to tap bigger opportunities in the industry.

    b) Enhanced scale of operations, improved controls, operational flexibility, optimization of overheads, organizational efficiency, and optimal utilization of various resources.

    c) Simplification of corporate structure by reducing the multiplicity of legal and regulatory compliances.

    d) Creation of a focused platform for future growth and continuous development of the Transferee Company.

    e) The merged entity will have the ability to leverage on its assets base, to enhance stakeholder's value and also will

help facilitate effective management of investment and synergies in operations.

f) The amalgamation is in the interest of the shareholders, creditors and debenture holders and all other stakeholders of the Companies and is not prejudicial to the interests of any of the concerned shareholders, creditors and debenture holders or the public at large.

6. The appointed date as specified in the Scheme of Amalgamation is 1st April, 2024 or such other date as may be approved by the National Company Law Tribunal (NCLT).

7. The recommended Share Exchange Ratio after consideration of all the relevant factors and circumstances by the registered valuer as per the valuation report dated 10.09.2024 is as follows:

   i. 6 (Six) equity share of (Face Value INR 10 Transferee Company fully paid up) for every 7 (Seven) equity shares of Transferor Company No. 1.

   ii. 286 (Two Hundred Eighty-Six) equity share of (Face Value INR 10 Transferee Company fully paid up) for every 7 (Seven) equity shares of Transferor Company No. 2.

8. From the record, it is seen that the first motion joint application seeking direction for dispensation/convening the meeting of shareholders, secured creditors and unsecured creditors was filed before this Tribunal

vide C.A. (CAA) NO. 26/ND/2025. This Tribunal vide order dated 05.05.2025 had passed the following directions:

i. The requirement of convening/holding the meeting of equity shareholders of the Transferor Companies and Transferee Company were dispensed with in view of consent affidavits from all the equity shareholders.

ii. The requirement of convening/holding the meeting of preference shareholders of the Transferee Company was dispensed with in view of consent affidavits from all the preference shareholders.

iii. The requirement of convening/holding the meeting of Debenture holders of the Transferor Company No. 1 and the Transferee Company was dispensed with in view of consent affidavits from all the Debenture Holders.

iv. The requirement of convening/holding the meeting of unsecured creditors of the Transferor Company No. 1 was dispensed with in view of consent affidavit from one unsecured creditor representing 99.77% in value.

v. Since there were no unsecured creditors of the Transferor Company No. 2, the requirement of convening/holding the meeting did not arise.

vi. Since there were no secured creditors of the Transferor Companies, the requirement of convening/holding the meeting did not arise.

vii. The requirement of convening/holding the meeting of secured creditors of the Transferee Company was dispensed with in view of consent affidavits from all secured creditors.

viii. The requirement of convening/holding the meeting of unsecured creditors of the Transferee Company was dispensed with in view of consent affidavits of unsecured creditors representing 91.59% in value.

9. In the present second motion petition, vide order dated 20.05.2025, the Petitioner Companies were directed to carry out publication in two newspapers namely "Business Standard" (English, All India Edition) and Business Standard ("Hindi Edition") and to serve notices to the (i) Central Government, through the Ministry of Corporate Affairs to the Jurisdictional Regional Director(s), Ministry of Corporate Affairs, (ii) Registrar of Companies (iii) Income Tax Officer, (iv) Official Liquidator (v) Statutory Authority RERA and any other such Sectoral Regulators or Authorities.

10. It is seen from the record that the Petitioner Companies have filed an affidavit dated 13.06.2025 affirming compliance and disclosing the

petitioners have affected publication in “Business Standard” English Edition and “Business Standard” Hindi Edition dated 28.05.2025 and 29.05.2025 respectively. In addition to the public notice, notices were served on the Regional Director (Northern Region) of Ministry of Corporate Affairs, Registrar of Companies, NCT of Delhi, Official Liquidator, Income Tax Officer, RERA – Delhi and Uttar Pradesh and any such other Sectoral Regulators or Authorities.

11. Pursuant to the notice issued, the Regional Director and Official Liquidator have filed their response/reply in the matter.

12. The Regional Director (RD) in its affidavit dated 17.07.2025 filed on 22.07.2025, as per the Report of RoC vide letter dated 09.07.2025, has highlighted certain observations regarding the proposed scheme of Amalgamation among the Petitioner Companies made by the RoC. In response to the same, the Petitioner Companies have filed reply vide letter dated 11.09.2025 wherein the Petitioner Companies have given clarification to address the observations made by the RoC. The details of the same are given below:

| S.No. | Observation by the RoC vide letter dated 09.07.2025 | Reply by the Petitioner Companies dated 11.09.2025 |
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| 1. | As per audited financial statements of the Transferor company-02 for the F.Y. ended 31.03.2024, it is seen that the company has nil revenue from its operation since last two years. Hence, the company appears to be inactive. The company may clarify the same. | It is respectfully submitted that M/s. Shaktiman Infrastructures Private Limited ("Transferor Company No. 2/Petitioner Company No.2") is engaged in the business of real estate and e infrastructure development.<br>The question pertaining to the absence of operational income |

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| | | during the financial years 2022-23 and 2023-24 is a direct outcome of the commercial lifecycle of the Company's business, but not a reflection of any inactivity in the operations of the said company. It is humbly submitted that the Company had previously undertaken and completed a real estate project during the FY 2021-22, following which its immovable inventory comprising of land parcels was fully disposed of.<br>The total revenue generated from the said sale amounted to INR 30,77,49,800/-, which was duly recorded in the audited financial statements for that year. This marked the culmination of the Company's then active development cycle. Post completion of the project and sale of its immovable assets, the Company was left with surplus capital.<br>Instead of holding the surplus idle the Company deployed the same within the group entities for ongoing real estate projects being undertaken by its group entities. It is submitted respectfully that the absence of revenue from core operations is attributable to the fact that the Company had successfully monetized its project and did not undertake any new project independently in the following two years i.e., FY 2022-23 and FY 2023-24. The Company has not deviated from its business objects, nor has it carried out any unrelated financial activity. Rather, it has supported related group projects through prudent capital allocation. The present Scheme of Amalgamation has been structured in view of this transitional phase and is aimed at consolidating the operations, assets, and capital resources of |

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| | | the group entities under the Transferee Company to achieve operational efficiency, economies of scale, and enhanced financial strength. The merger will enable unified deployment of capital for future development initiatives and eliminate administrative duplication.<br><br>In view of the above, we respectfully submit that Transferor Company No. 2 is not inactive in a commercial or functional sense. It has concluded its development activity, responsibly managed its surplus, and is now proposed to be merged as part of a planned and value-accretive group consolidation exercise. |
| 2. | As per audited financial statements of the Transferor Company-02 for the F.Y. ended 31.03.2023 and F.Y. ended 31.03.2024, it is seen that the company has met the criteria of 50:50 test (i.e. the company's financial assets is more than 50% of its total assets and other income from these financial assets is also more than 50% of its total income). Hence, the company is deemed to NBFC. However, no RBI approval has been submitted by the said company and hence, the company may clarify the same. | We respectfully submit that Shaktiman Infrastructures Private Limited (hereinafter referred to as the "Transferor Company No. 2") is primarily engaged in the business of real estate and infrastructure development. The object of the company and the nature of its business is duly reflected in Note 1 under "Corporate Information" of the financial statements for the financial year ended 31st March 2021-22, as well as for FY 2023-24, which reads as follows:<br><br>"**The main object of the company is to promote infrastructure projects"**<br><br>That in the financial year 2021-22, the Company sold its entire inventory (comprising immovable property in the form of land) amounting to INR 30,77,49,800/- on completion of the project, as disclosed under Note 17 of the Audited Financial Statements for the year ended 31st March 2022. The sale of the said inventory resulted in surplus funds. The |

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| | | surplus fund post completion of the project of the company has been advanced to the group company for development of real estate projects.<br>It is respectfully submitted that during the financial years 2022-23 and 2023-24, on completion of ongoing real estate development activity, the said surplus was deployed to M/s. Kanav Realtech Private Limited (Related party) for real estate development within the group, and not for the purposes of financial investment or lending. The income arising from this deployment was in the nature of interest received from M/s. Kanav Realtech Private Limited on the temporary deployment of surplus funds. This interest income, not being part of the company's core operating activities (i.e., real estate development), was appropriately classified and disclosed under the head "Other Income" in the Statement of Profit and Loss for the financial year 2023-24, in accordance with the applicable standards. accounting The total amount so recognised was INR 6,25,296/-, as reflected in Note 12 of the financial statements for the FY 2023-24.<br>It is submitted that this temporary asset and income profile arose purely due to a transitory business phase, and not out of any intention to carry out financial services or lending activity. The Company has neither been engaged in financing business nor has it ever held itself out as an NBFC under the RBI regulatory framework.<br>That the Independent Auditor has specifically opined in Clause xvi(a) of the Auditor's Report for the financial year ended 31st March 2022 read as under: |

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| | | "**In our Opinion and based on our examination, the Company is not required to be registered under section 45-IA of the Reserve Bank of India Act, 1934.** "<br>The Company did not engage in any financing activity, nor did it grant any loans or financial products to the public. The income earned during the year arose solely from the temporary deployment of surplus funds to a related party within the group i.e., to M/s. Kanav Realtech Private Limited for real estate development purposes, which aligns with the Company's core business objectives.<br>That the proposed Scheme of Amalgamation has been structured with the objective of consolidating the assets and real estate operations of the group companies, for efficient deployment of capital for upcoming. infrastructure and development projects. The Scheme is not intended to regularize, restructure, or cover any lending or financing activity.<br>It is further submitted that Transferor Company No. 2 does not undertake, nor does it have any intention or stated objective to adopt or engage in any form of lending or financial services activity, whether to the public or within the group. The transactions reflected in its financial statements are incidental to its real estate operations and do not constitute financial activity within the meaning of the RBI's NBFC framework.<br>That in view of the above, it is most respectfully submitted that the Transferor Company No. 2 does not fall within the definition of a Non-Banking Financial Company (NBFC) as provided |

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| | | under Section 45-IA of the Reserve Bank of India Act, 1934, and as such, no registration or prior approval of the RBI is required. |
| 3. | As per the valuation report and the scheme of amalgamation the share exchange ratio for the Transferor company-01 is decided as "6 (Six) fully paid equity share of face value INR 10 of the Transferee Company will be issued for every 7 (Seven) equity shares of INR 10 each of the Transferor Company No. 1".<br><br>However, as per the records of MCA registry, Transferor Company-01 is wholly owned subsidiary of the Transferee Company and the entire issued, subscribed and paid-up capital of the Transferor Company is held by the Transferee Company. Accordingly, post-merger, the Transferee Company would not issue/allot any shares to the shareholders of the Transferor company-01. | We respectfully submit that Clause 10.2 has been included in the scheme deliberately, as a prudent commercial measure, to provide flexibility in the implementation of the Scheme, considering the time typically taken for sanction and implementation of a merger in terms of section 230-232 of the Companies Act, 2013.<br>At present, the Transferee Company holds the entire share capital (directly or through nominees) of Transferor Company No. 1. However, during the pendency of the scheme before the Hon'ble NCLT, there remains a possibility that the shareholding of Transferor Company No. 1 may change (for example, by way of induction of additional shareholders, or transfer of shares).<br>Clause 10.2 therefore provides that, upon the scheme becoming effective, the Transferee Company shall issue equity shares to the members of Transferor Company No. 1 whose names appear in the Register of Members as on the Record Date, based on the swap ratio. This mechanism:<br>• Ensures that shares are issued only to the actual shareholders existing at the relevant time, and<br>• Avoids the need to modify or re-approve the scheme if there is any such change in shareholding before the effective date.<br><br>We also respectfully point out that Clause 9.1 simultaneously ensures that shares held by the Transferee Company itself in Transferor Company No. 1 stand cancelled automatically, thereby |

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| | | preventing any circular issuance of shares to itself, which is in line with the prohibition under Section 19 of the Act.<br>Thus, the scheme remains fully compliant with the principles of amalgamation under the Act. It safeguards against unjust enrichment of the Transferee Company, while preserving flexibility to accommodate changes in shareholding that may occur during the natural course of business before the scheme becomes effective. We respectfully submit that Clause 10.2 has been deliberately included in the Scheme as a precautionary and enabling provision, and not due to any current requirement for issuance of shares. We acknowledge that, as on date, the entire issued, subscribed and paid-up share capital of Transferor Company No. 1 is held by the Transferee Company (either directly or through its nominees), and hence, there would be no issuance/allotment of shares upon the Scheme becoming effective if the shareholding of Transferee Company remains unchanged. |
| 4. | The Transferee Company may kindly be directed to comply with the provisions of Section 232(3)(i) of the Companies Act, 2013 regarding fee payable on its revised authorised share capital. | That the Transferee Company undertakes to comply with the provisions of Section 232(3)(i) of the Companies Act, 2013 in their entirety. Upon the Scheme of Amalgamation becoming effective, the Transferee Company shall take all necessary steps to ensure that any additional fees payable on the combined authorized share capital are duly calculated and paid in accordance with applicable law. Further, all requisite filings, including those with the Registrar of Companies, shall be made to reflect the revised capital structure, as and when required. |

13. Thus, the Petitioner Companies have duly replied to queries raised by the RoC and vide order dated 17.03.2026 it is recorded that the RD has submitted that they have no further observation in this matter.

14. The Official Liquidator has filed its report dated 11.07.2025, wherein no specific objection has been raised against the approval of the Scheme. It has been submitted in the report that the Official Liquidator has not received any complaint against the proposed Scheme of Amalgamation from any person/party interested in the Scheme and affairs of the aforesaid Transferor Companies do not appear to have been conducted in a manner prejudicial to the interest of its members or to public interest in terms of the provisions of the Companies Act, 2013. As per order dated 06.01.2026 it is recorded that the Official Liquidator has submitted that they have no objections to the Application.

15. Real Estate Regulatory Authority (RERA) vide its order dated 13.08.2025 has given no objection to the scheme of amalgamation subject to the condition that it shall not adversely affect the ongoing projects being implemented by M/s Asteroid Shelters Homes Pvt. Ltd. and the same is on record.

16. Income Tax Department has filed its report dated 29.07.2025 and the findings are as below related to the Petitioner Companies:

i. Transferor Company No. 1: Collectible demand of Rs.17,07,84,454/- for AY 2020-21 is due. As per ITBA portal, penalty proceedings u/s 270A & 271AAC(1) for AY 2020-21 are pending.

ii. Transferor Company No. 2: No demand is due but as per ITBA portal, assessment proceedings u/s 147 for AY 2022-23 is pending.

iii. Transferee Company: Demand of Rs.91,83,11,719/- for AY 2019-20 to 2022-23 is outstanding. As per ITBA portal, assessment proceedings u/s 143(3) for AY 2024-25 is pending. Further, penalty proceedings u/s 270A for AY 2018-19 to 2022-23 & penalty proceedings u/s 271AAC(1) for AY 2020-21 to 2022-23 are pending.

17. The Transferee Company has filed undertaking-cum-affidavit dated 11.09.2025 with regards to income tax dues stating that all Income Tax liabilities of the Petitioner Companies if any or arising in future post amalgamation shall be borne by the Transferee Company subject to adjudication of any assessment, appeals or any other suit pending before Income Tax tribunals or before any other Court in accordance with applicable laws. It is further provided that any new and pending prosecutions, suits, appeals or other proceedings of whatever nature and any penalties arising thereunder, by or against the transferor

companies, shall be transferred and vested with the transferee Company.

18. The Petitioner Companies have annexed the certificate issued by the statutory auditor confirming that the accounting treatment in the Scheme is in conformity with Section 133 of the Companies Act, 2013.

19. The Petitioner Companies have filed affidavits under Section 230(2) affirming that there are no investigation or proceedings pending against the respective petitioner companies under any law for the time being in force.

20. Since, the shareholders of the petitioner companies are the best judges of their interest, being fully conversant with market trends, therefore, their decisions are not supposed to be interfered with by the Tribunal for the reason that it is not proper on the part of the judicial function of the Tribunal to examine and evaluate entrepreneurial activities and their commercial decisions. It is well settled that the Tribunal evaluating the Scheme, of which sanction is sought under Section 230-232 of the Companies Act of 2013, will do not ordinarily go into the merits of the corporate decisions of companies as approved by their respective shareholders and creditors.

21. It has also been affirmed in the petition that the Scheme is in the interest of the Petitioner Companies including their shareholders, creditors, employees and all concerned. In view of the foregoing, upon

considering the approval accorded by the members and creditors of the Petitioner Companies to the proposed Scheme, there appears to be no impediment in sanctioning the present Scheme.

22. Consequently, sanction is hereby granted to the Scheme under Section 230 to 232 of the Companies Act, 2013 with the following directions:

    i. The Petitioners shall always remain bound to comply with the statutory requirements in accordance with law.

    ii. Notwithstanding the sanction, if there is any deficiency found or, violation committed, qua any enactment, statutory rule or regulation, the sanction granted by this court to the scheme will not come in the way of action being taken in accordance with the law, against the concerned persons, directors and officials of the petitioners.

    iii. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, taxes or any other charges if any, and payment in accordance with law or in respect to any permission/compliance with any other requirement which may be specifically required under any law.

23. This Tribunal further directs with respect to the Transferor Companies and the Transferee Company, that:

i. The appointed date for the proposed scheme of amalgamation is 01.04.2024 or such other date as directed by this Tribunal. Having considered the time already elapsed and the fact that Accounts must have already been drawn for intervening period, we prescribe 01.04.2025 as the 'Appointed Date' for the proposed Scheme.

ii. Upon the sanction becoming effective from the appointed date i.e., 01.04.2025 as provided by this Tribunal, the Transferor Companies shall stand dissolved without undergoing the process of winding up.

iii. All contracts of the Transferor Companies which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favour of the Transferee Company and may be enforced by or against it as fully and effectually as if, instead of the Transferor Companies, the Transferee Company had been a party or beneficiary or obliged thereto.

iv. All the employees of the Transferor Companies shall be deemed to have become the employees and the staff of the Transferee Company with effect from the Appointed Date, and shall stand transferred to the Transferee Company without any interruption of service and on the terms and conditions no less favourable

than those on which they are engaged by the Transferor Companies, as on the Effective Date, including in relation to the level of remuneration and contractual and statutory benefits, incentive plans, terminal benefits, gratuity plans, provident plans and any other retirement benefits.

v. All liabilities of the Transferor Companies, shall, pursuant to the provisions of section 232(4) and other applicable provisions of the Companies Act, 2013, to the extent they are outstanding as on the Effective Date, without any further act, instrument or deed stand transferred to and be deemed to be the debts, liabilities, contingent liabilities, duties and obligations etc. as the case may be, of the Transferee Company and shall be exercised by or against the Transferee Company, as if it had incurred such liabilities.

vi. All proceedings now pending by or against the Transferor Companies be continued by or against the Transferee Company.

vii. Any person interested or affected shall be at liberty to apply to this Tribunal in the above matter for any directions that may be necessary.

24. Further, the Petitioner Companies shall within thirty days of the date of the receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such

certified copy being so delivered, the Transferor Companies shall be dissolved and the Registrar of Companies shall place all documents relating to the Transferor Companies on the file kept by him in relation to the Transferee Company and the files relating to all the Petitioner Companies shall be consolidated accordingly.

25. In compliance with the requirement of Section 232 (7) of the Act, the Transferee Company shall until the full implementation of the Scheme of Amalgamation shall file a statement every year in the Form CAA 8 along with the required fees with the Registrar of Companies as prescribed in the Companies (Registration offices and fees) Rules 2014 within 210 days from the end of each financial year.

26. The Petition i.e., **C.P. (CAA) No. 48 of 2025 stands allowed** on the aforesaid terms and accordingly disposed of. Let copy of the order be served to the parties.

**Sd/-** **Sd/-**

**(ATUL CHATURVEDI)** **(MANNI SANKARIAH SHANMUGA SUNDARAM)**

**MEMBER (TECHNICAL)** **MEMBER (JUDICIAL)**